

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.:

-----X
JOSEPH E. SHANNON,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JOSE VASQUEZ
MIRANDA (Tax Reg. 942655), P.O. MATTHEW
LEWIS (Tax Reg. 941054) and P.O. JOHN DOE
1-10,

Defendants.
-----X

SUMMONS

Plaintiffs designate
QUEENS County as the
place of trial.

The basis of venue
is where the Tort
arose and where
Plaintiff resides.

The Tort Arose in:
QUEENS COUNTY, NEW
YORK.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
OCTOBER 3, 2014



KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.

Attorneys for Plaintiff
JOSEPH E. SHANNON
89-31 161st Street, Suite 705
Jamaica, New York 11432
Our File No. 13-1339

TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007

P.O. Jose Vasquez Miranda
1 Police Plaza, Room 1100

New York, NY 10038

P.O. Matthew Lewis
1 Police Plaza, Room 1100
New York, NY 10038

P.O. John Doe 1-10
1 Police Plaza, Room 1100
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JOSEPH E. SHANNON,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. JOSE VASQUEZ
MIRANDA (Tax Reg. 942655), P.O. MATTHEW
LEWIS (Tax Reg. 941054) and P.O. JOHN DOE
1-10,

Defendants.
-----X

Plaintiff **JOSEPH E. SHANNON**, by his attorney THE LAW OFFICE
OF KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **JOSEPH E. SHANNON** was, and still is, a resident of the County of Queens, City and State of New York.

2. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times herein mentioned, Defendants **P.O JOSE VASQUEZ MIRANDA (Tax Reg. 942655), P.O. MATTHEW LEWIS (Tax Reg. 941054) and P.O. JOHN DOE 1-10** were and are police officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

4. On or about July 22, 2013 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of

Claim, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within the statutory period after the cause of action herein alleged accrued.

6. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on November 8, 2013.

7. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY Plaintiff **JOSEPH E. SHANNON** was lawfully sitting within a Rochdale Village Park.

8. Plaintiff observed officers, including the Police Officer Defendants herein, speaking to a young man in a rude, abusive and threatening manner causing him to cry and appear quite afraid.

9. Plaintiff approached the Defendant Police Officers to ask them about the young man and make sure he was ok.

10. In Response the Defendant Police Officers unlawfully demanded that Plaintiff produce proof of identification and began speaking to Plaintiff in a disrespectful and abusive manner.

11. The Defendant Police Officers then began striking Plaintiff about his head and body, forcibly took Plaintiff to the ground and continued to strike Plaintiff about his body.

12. As a result of the Defendant Police Officers' conduct Plaintiff sustained several serious personal injuries.

13. Defendants **P.O. JOSE VASQUEZ MIRANDA (Tax Reg. 942655)**, **P.O. MATTHEW LEWIS (Tax Reg. 941054)** and **P.O. JOHN DOE 1-10** then arrested Plaintiff **JOSEPH E. SHANNON**.

14. Plaintiff was brought to the NYPD 113th Precinct followed by Central Booking and was charged and prosecuted in Queens County Criminal Court under Docket #2013QN034281.

AS AND FOR A FIRST CAUSE OF ACTION

15. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "14" with full force and effect as though set forth at length herein.

16. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any legal right, wrongfully and unlawfully committed a harmful or offensive touching upon the Plaintiff **JOSEPH E. SHANNON**, by striking him repeatedly about his face and body using fists and other objects.

17. Plaintiff did not consent to the force used by Defendants.

18. The Defendants did not have any legal cause to use force upon Plaintiff **JOSEPH E. SHANNON** and the force used upon the Plaintiff was not authorized or privileged under the law.

19. As a result of the conduct of the Defendants Plaintiff was damaged.

AS AND FOR A SECOND CAUSE OF ACTION

20. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "19" with full force and effect as though set forth at length herein.

21. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **JOSEPH E. SHANNON** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their firearms and/or various other objects demonstrating they were about to strike Plaintiff.

22. All of the above actions placed the Plaintiff in imminent fear of physical contact.

23. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

24. The unlawful actions of the Defendants were not authorized or privileged by law.

25. As a result of the Defendants' conduct described herein Plaintiff was damaged.

AS AND FOR A THIRD CAUSE OF ACTION

26. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "25" with full force and effect as though set forth at length herein.

27. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacity as police officers, did subject Plaintiff to the excessive use of physical force in that the officers had no legal cause to use force upon Plaintiff and that the use of force was exceedingly more than what was permissible under the law and the prevailing circumstances.

28. Defendants did not have legal cause to use physical force upon the Plaintiff.

29. Plaintiff did not consent to the force used upon him by Defendants.

30. The force used upon Plaintiff was not authorized or privileged by law.

31. As a result of the Defendants' conduct described herein Plaintiff was damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates and re-alleges all of the

allegations contained in paragraphs "1" through "31" with full force and effect as though set forth at length herein.

33. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants owed Plaintiff **JOSEPH E. SHANNON** a duty of care to act reasonably under the circumstances in the performance of their duties as police officers.

34. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY jointly and severally acting in their capacities as police officers breached their duty owed to Plaintiff by assaulting and battering Plaintiff and subjecting him to the excessive use of force.

35. The defendants conduct as described herein was the direct and proximate cause of injury to Plaintiff.

36. As a result of the Defendants' conduct Plaintiff was damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "36" with full force and effect as though set forth at length herein.

38. Defendants **P.O. JOSE VASQUEZ MIRANDA (Tax Reg. 942655)**, **P.O. MATTHEW LEWIS (Tax Reg. 941054)** AND **P.O. JOHN DOE 1-10** were at all times relevant, duly appointed and acting officers of the New York City Police Department.

39. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

40. Plaintiff **JOSEPH E. SHANNON** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

41. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacity as police officers, wrongfully touched and battered the Plaintiff **JOSEPH E. SHANNON** causing him physical pain and mental suffering. At no time did the Defendants have legal cause to touch, strike and/or batter Plaintiff. The Plaintiff did not consent to the Defendants' conduct as described herein nor was the conduct privileged by law.

42. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, did place Plaintiff **JOSEPH E. SHANNON** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

43. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any legal right, subjected Plaintiff to the excessive use of physical force causing Plaintiff **JOSPEH E. SHANNON** physical and mental pain and suffering. Plaintiff did not consent to this conduct nor was it authorized or privileged by law.

44. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacities as police officers, detectives and/or sergeants subjected Plaintiff **JOSEPH E. SHANNON** to an unlawful seizure. Plaintiff did not consent to this conduct nor was it privileged by law.

45. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from being subjected to excessive use of force;
- e. Freedom from being subjected to unlawful summary punishment.

46. The Defendants subjected Plaintiff to such deprivations, either in a malicious manner, or with reckless disregard of the Plaintiff's rights, or with deliberate

indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

47. The direct and proximate results of the Defendants' acts are that the Plaintiff was, and continues to be, forced to endure pain and suffering, all to his detriment. He has suffered severe and permanent injuries of a physical and psychological nature.

AS AND FOR A SIXTH CAUSE OF ACTION

48. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "47" with full force and effect as though set forth at length herein.

49. That on or about June 21, 2013 at approximately 11:15am at or near 134-15 166th Place Jamaica, NY the defendants jointly and severally in their capacity as police officers saw Plaintiff, an African American man, lawfully within a public park.

50. Upon information and belief Plaintiff was not engaged in any conduct that would legally justify the Defendants stopping, seizing, frisking, questioning or even demanding information from the Plaintiff.

51. Upon information and belief the Defendants treated Plaintiff in the afore-described manner for no reason other than the fact that he was African American.

52. The Defendant **THE CITY OF NEW YORK**, has previously implemented, enforced, encouraged and sanctioned a policy,

practice and/or custom of unconstitutional stops and frisks of City residents by the New York City Police Department. Said policy remained in effect and was being actively practiced on June 21, 2013.

53. Without the reasonable articulable suspicion required under the Fourth Amendment, NYPD officers, including defendants herein, have been engaged in rampant stops and frisks of individuals, including Plaintiff **JOSEPH E. SHANNON**.

54. NYPD officers, in violation of the Equal Protection Clause of the Fourteenth Amendment, often have used, and on June 21, 2013 used, race and/or national origin - not reasonable suspicion - as the determinative factors in deciding to stop and frisk individuals generally, and Plaintiff herein specifically. The victims of such racial and/or national profiling are principally Black and Latino.

55. The NYPD's widespread constitutional abuses have flourished as a result of, and are directly and proximately caused by, policies, practices and/or customs devised, implemented and enforced by **THE CITY OF NEW YORK. THE CITY OF NEW YORK**, its employees, servants and or agents have acted with deliberate indifference to the constitutional rights of those who would come into contact with NYPD officers by: (a) failing to properly screen, train, and supervise NYPD officers, (b) inadequately monitoring NYPD officers and their stop and frisk practices, (c) failing to sufficiently discipline NYPD offices who engage in

constitutional abuses, (d) encouraging, sanctioning and failing to rectify the NYPD's unconstitutional practices.

56. As a direct and proximate result of defendants' policies, practices, and/or customs, hundreds of thousands of City residents, in particular Black and Latino individuals including Plaintiff herein, have been subjected to unconstitutional stops and frisks by NYPD officers. Indeed, many Black and Latino persons repeatedly have been victims of suspicionless stops and frisk by the NYPD.

57. Moreover, the NYPD's constitutional abuses have been attended by unlawful searches and seizures and, at times, excessive force.

58. Plaintiff **JOSEPH E. SHANNON** was likewise subjected to an unconstitutional stop and frisk among other constitutional abuses including the use of excessive force all occurring on June 21, 2013.

59. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from being subjected to excessive use of force;

e. Freedom from being subjected to unlawful summary punishment.

60. **THE CITY OF NEW YORK** subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

61. The direct and proximate results of the Defendants' acts are that the Plaintiff was forced to endure conscious pain and suffering including, but not limited to, severe and permanent physical and psychological injuries.

AS AND FOR AN SEVENTH CAUSE OF ACTION

62. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "61" as if set forth at length herein.

63. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest

innocent individuals. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiff herein and other members of the community similarly situated.

64. As a direct and proximate result of the Defendant's failures Plaintiff sustained physical and psychological injuries and was otherwise damaged.

AS AND FOR AN EIGHTH CAUSE OF ACTION

65. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "64" as if set forth herein at length.

66. In relevant part, 42 U.S.C. § 1985(3) provides that, "[i]f two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have an action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

67. Defendants **P.O. JOSE VASQUEZ MIRANDA (Tax Reg. 942655)**, **P.O. MATTHEW LEWIS (Tax Reg. 941054)** AND **P.O. JOHN DOE 1-10** did conspire to directly violate Plaintiff's Federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to strike, punch, kick, assault and batter Plaintiff and subject him to the excessive use of force without legal authority or consent.

68. Said conduct of Defendants was motivated either by a racial animus or by prejudgments of African American males in certain New York City communities that predispose Defendant Police Officers to use excessive force against African Americans.

69. As a result of the Defendants' conduct Plaintiff suffered a deprivation of the above enumerated rights guaranteed by the United States Constitution, the laws of The United States and the State of New York.

AS AND FOR A NINETH CAUSE OF ACTION

70. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "69" as if set forth herein at length.

71. In relevant part 42 U.S.C. § 1986 provides that, "[e]very person who, having knowledge that any of the wrongs conspired to be done, and mentioned in section 1985 of this title, are about to be committed, and having power to prevent or aid in preventing the commission of the same, neglects or refuses so to

do, if such wrongful act be committed, shall be liable to the party injured, or his legal representatives, for all damages caused by such wrongful act, which such person by reasonable diligence could have prevented; and such damages may be recovered in an action on the case; and any number of persons guilty of such wrongful neglect or refusal may be joined as defendants in the action."

72. Defendant **P.O. JOSE VASQUEZ MIRANDA (Tax Reg. 942655)** had knowledge of the conspiracy to discriminate against Plaintiff and deprive him of certain Federal Constitutional and Statutory rights.

73. Defendant **P.O. JOSE VASQUEZ MIRANDA (Tax Reg. 942655)**, had the power to prevent or aid in the prevention of the acts that infringed upon Plaintiff's Federal Constitutional and Statutory rights.

74. Despite having this power **P.O. JOSE VASQUEZ MIRANDA (Tax Reg. 942655)** neglected or refused to prevent the acts of discrimination from being perpetrated upon plaintiff.

75. Defendant **P.O. MATTHEW LEWIS (Tax Reg. 941054)** had knowledge of the conspiracy to discriminate against Plaintiff and deprive him of certain Federal Constitutional and Statutory rights.

76. Defendant **P.O. MATTHEW LEWIS (Tax Reg. 941054)**, had the power to prevent or aid in the prevention of the acts that

infringed upon Plaintiff's Federal Constitutional and Statutory rights.

77. Despite having this power **P.O. MATTHEW LEWIS (Tax Reg. 941054)** neglected or refused to prevent the acts of discrimination from being perpetrated upon plaintiff.

78. Defendant **P.O. JOHN DOE 1-10** had knowledge of the conspiracy to discriminate against Plaintiff and deprive him of certain Federal Constitutional and Statutory rights.

79. Defendant **P.O. JOHN DOE 1-10**, had the power to prevent or aid in the prevention of the acts that infringed upon Plaintiff's Federal Constitutional and Statutory rights.

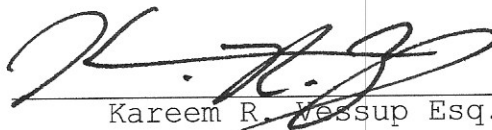
80. Despite having this power **P.O. JOHN DOE 1-10** neglected or refused to prevent Plaintiff's rights from being violated.

81. As a result of **P.O. JOSE VASQUEZ MIRANDA (Tax Reg. 942655)**, **P.O. MATTHEW LEWIS (Tax Reg. 941054)** AND **P.O. JOHN DOE 1-10** actions, or failures thereof, Plaintiff suffered deprivations of the above enumerated rights guaranteed by the United States Constitution, the laws of the United States and the State of New York.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for

bringing this case.

DATED: JAMAICA, NEW YORK
OCTOBER 3, 2014



Kareem R. Vessup Esq.

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF QUEENS)

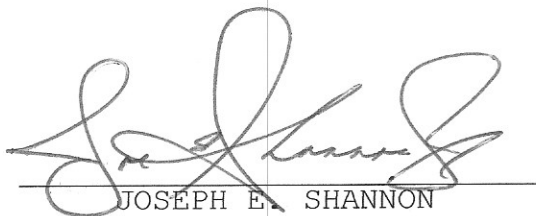
JOSEPH E. SHANNON, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the
annexed

SUMMONS AND COMPLAINT

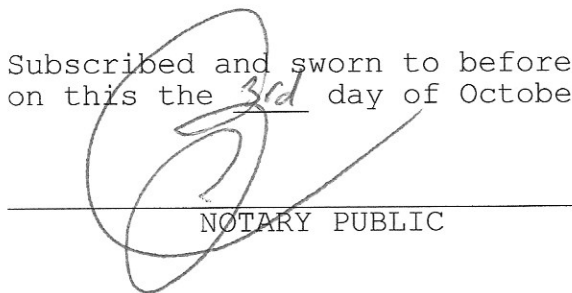
and know the contents thereof, and the same are true to my
knowledge, except those matters therein which are stated to be
alleged upon information and belief, and as to those matters I
believe them to be true. My belief as to those matters therein not
stated upon knowledge, is based upon facts, records, and other
pertinent information contained in my personal files.

Dated: JAMAICA, NEW YORK
 OCTOBER 3, 2014



JOSEPH E. SHANNON

Subscribed and sworn to before me
on this the 3rd day of October, 2014



NOTARY PUBLIC

THERESA A. COOK
Notary Public, State of New York
No. 01CO6099323
Qualified in Rockland County
Commission Expires September 29, 2015